

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civil Code, § 3294.)

A plaintiff must plead more than conclusory allegations to seek punitive damages. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiff, as discussed above with respect to the demurrer, does not allege any particularly blameworthy act on the part of Maria Casillas. While a defendant must have intended to cause the touching involved in a battery, nothing in the complaint suggests that there was any intent to harm in Casillas' touching. Accordingly, an award for the "sake of example and by way of punishing the defendant" is not justified.

The motion to strike is granted as to items 1, 2, and 8. However, plaintiff states he can "go into more detail" (Opposition 5:14-16) so leave to amend is granted.

2.Eighth Cause of Action

As discussed above, with respect to the demurrer, the Court does not agree with defendants that the scope of amendment precluded plaintiff's adjusting of the eighth cause of action. The motion is denied as to this item (Item No. 3).

3.Discussion of Legal Authorities

As to the various citations to legal authority and plaintiff's narrative concerning the import of these authorities, the motion is denied. While there may be little need for such text, the Court does not necessarily view the text as improper, false, or irrelevant. As pointed out in the plaintiff's opposition, this is complaint against a public entity and therefore may require the pleading and proving of certain mandatory duties pursuant to statute. Accordingly, the motion is denied as to the quoted material (Items 4-7).

7. 9:00 AM CASE NUMBER: C24-00451
CASE NAME: JAXSON JULIAN VS. MARIA CASILLAS
***HEARING ON MOTION IN RE: STRIKE 3RD AMENDED COMPLAINT**
FILED BY: CASILLAS, MARIA
TENTATIVE RULING:

Please see Line 6.

8. 9:00 AM CASE NUMBER: C24-01376
CASE NAME: XUE XIE VS. SHENG LIN
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF SHENG PING LIN**
FILED BY: XIE, XUE FEN
TENTATIVE RULING: